TERMS AND CONDITIONS

Market My Art (MMA)
Effective Date: 5 November 2026

1. Introduction

Welcome to Market My Art (MMA).

These Terms and Conditions govern access to and use of the MMA website, marketplace and related services.

MMA is an online marketplace established to promote African creativity, connect artisans and independent vendors with customers, and facilitate the discovery and purchase of African art, handmade crafts, fashion, cultural products and other creative merchandise.

By accessing our website, registering an account or purchasing products through the platform, you agree to these Terms and Conditions.

If you do not agree with these terms, you should discontinue use of the platform.

2. Nature of the Marketplace

MMA provides a digital marketplace that enables independent vendors, artisans, artists and creators to display and offer their products for sale.

Depending on the transaction and applicable arrangements, MMA may facilitate:

- Product discovery and online listings.
- Customer and vendor communication.
- Order placement and transaction processing.
- Payment facilitation through supported payment providers.
- Shipping and delivery coordination through available logistics partners.
- Customer support and dispute resolution.

MMA acts as the marketplace facilitator and does not manufacture every product listed on its platform.

3. User Registration and Accounts

Users may be required to create an account to access certain marketplace services.

Users agree to:

- Provide accurate and complete registration information.
- Maintain the confidentiality of their account credentials.
- Keep their account information updated.
- Notify MMA promptly of suspected unauthorised account access.
- Accept responsibility for activities conducted through their accounts, subject to applicable law.

MMA reserves the right to suspend or restrict accounts where fraudulent, unlawful or suspicious activity is identified.

4. Vendor Registration and Responsibilities

Vendors wishing to sell through MMA may be required to complete registration and verification procedures.

Vendors are responsible for:

- Providing accurate business and identity information.
- Supplying genuine and legally marketable products.
- Ensuring that product listings are accurate and not misleading.
- Providing clear product photographs, descriptions and pricing.
- Maintaining reasonable stock and availability information.
- Processing and fulfilling accepted orders.
- Packaging products appropriately for transportation.
- Complying with applicable commercial, tax, consumer protection and product safety laws.

MMA reserves the right to review, approve, reject, suspend or remove vendor listings that violate platform policies or applicable law.

5. Products and Product Descriptions

MMA aims to ensure that product information displayed on the platform is accurate and informative.

However, customers acknowledge that handmade and artistic products may contain natural variations in colour, texture, dimensions, materials and finishing.

Such variations do not necessarily constitute defects where they are consistent with the nature of the product and adequately disclosed.

Customers are encouraged to review product descriptions, specifications, photographs, prices and delivery information before completing a purchase.

6. Pricing and Payments

All product prices and applicable charges will be displayed during the purchasing process.

Depending on the transaction, additional charges may include:

- Delivery and shipping fees.
- Applicable taxes, customs duties or import charges.
- Other clearly disclosed transaction-related charges.

Payments are processed through supported third-party payment providers and authorised payment channels.

MMA does not encourage or authorise fraudulent, unauthorised or deceptive payment activities.

All transactions are subject to applicable payment provider requirements, verification procedures and security measures.

7. Orders and Order Acceptance

Placing an order constitutes an offer to purchase the selected product.

An order confirmation does not necessarily mean that the order has been fully accepted or dispatched.

MMA or the relevant vendor may decline or cancel an order where:

- The product is unavailable.
- Pricing or listing information contains a material error.
- Payment verification is unsuccessful.
- Fraudulent or suspicious activity is identified.
- The vendor is unable to fulfil the order.

Where payment has already been received for an order that is subsequently cancelled, an eligible refund will be handled in accordance with MMA's Refund, Cancellation and Return Policy.

8. Shipping and Delivery

MMA may work with independent courier companies and logistics partners to facilitate local and international deliveries.

Delivery estimates will depend on the vendor's processing time, destination, courier availability, customs procedures and other relevant circumstances.

Customers are responsible for providing accurate delivery details.

International customers may be required to pay applicable import duties, taxes or customs charges imposed by the destination country.

MMA will endeavour to assist customers with delivery-related complaints and enquiries.

9. Returns, Refunds and Cancellations

All returns, exchanges, refunds and order cancellations are governed by MMA's Refund, Cancellation and Return Policy.

Customers are encouraged to review that policy before placing an order.

Nothing in these Terms and Conditions removes any consumer rights that cannot lawfully be excluded under applicable law.

10. Intellectual Property Rights

MMA's website, branding, logos, platform design, original content and related materials are protected by applicable intellectual property laws.

Users may not reproduce, distribute, modify or commercially exploit MMA-owned materials without prior written permission.

Artists and vendors retain ownership of their original artworks, designs, photographs and creative works unless otherwise agreed.

By submitting content to the platform, vendors grant MMA a non-exclusive permission to display, reproduce and promote that content for marketplace operations and legitimate promotional purposes.

11. Prohibited Products and Activities

Users and vendors must not use MMA to promote, advertise, distribute or sell unlawful, counterfeit, stolen or prohibited goods.

All users must comply with MMA's Acceptable Use Policy.

MMA reserves the right to remove prohibited listings, suspend accounts and take appropriate action where violations occur.

12. Privacy and Personal Information

MMA respects the privacy of its users and is committed to handling personal information responsibly.

Information collected during registration, purchasing, payment processing and delivery coordination will be used for legitimate business purposes, including:

- Account management.
- Order processing and fulfilment.
- Payment verification.
- Customer service and communication.
- Fraud prevention and platform security.
- Compliance with applicable legal obligations.

Personal information will be handled in accordance with MMA's Privacy Policy and applicable data protection laws.

13. Third-Party Services

MMA may integrate with or rely on third-party service providers, including payment processors, courier companies, logistics providers and technology partners.

These services may operate under their own terms, policies and operational procedures.

MMA is not responsible for independent third-party systems or services beyond its reasonable control, but will make reasonable efforts to assist customers where third-party service issues affect marketplace transactions.

14. Limitation of Liability

MMA will take reasonable steps to maintain a secure, reliable and functional marketplace.

However, to the extent permitted by applicable law, MMA shall not be liable for:

- Temporary website interruptions or technical failures.
- Delays caused by independent courier companies or logistics providers.
- Events beyond MMA's reasonable control.
- Inaccuracies in information independently supplied by vendors where MMA has exercised reasonable platform oversight.

Nothing in these terms excludes liability for fraud, wilful misconduct, negligence where liability cannot lawfully be excluded, or any statutory rights that cannot be waived.

15. Suspension and Termination

MMA may suspend, restrict or terminate access to the platform where a user:

- Violates these Terms and Conditions.
- Engages in fraudulent or unlawful activities.
- Provides false or misleading information.
- Breaches the Acceptable Use Policy.
- Uses the platform in a manner that threatens other users or the integrity of MMA.

Users may request account closure by contacting MMA customer support, subject to outstanding transactions and applicable legal obligations.

16. Changes to These Terms

MMA reserves the right to amend these Terms and Conditions when necessary to reflect changes in its services, business operations, technology or applicable laws.

Updated terms will be published on the website, together with the applicable effective date.

Continued use of the platform following publication of updated terms constitutes acceptance of those changes, to the extent permitted by law.

17. Governing Law and Dispute Resolution

These Terms and Conditions shall be governed by the laws of the Federal Republic of Nigeria, subject to applicable mandatory consumer protection and other legal requirements.

MMA encourages customers, vendors and other users to resolve complaints and disputes through good-faith communication with its customer support team.

Where an amicable resolution cannot be reached, disputes may be referred to the appropriate competent courts or other legally recognised dispute resolution mechanisms.

18. Contact Information

For questions, complaints or enquiries concerning these Terms and Conditions, please contact:

Market My Art (MMA)
Website: https://marketmyartonline.com
Email: support@marketmyartonline.com

By using the Market My Art platform, you acknowledge that you have read, understood and agreed to these Terms and Conditions.